

writs of prohibition and mandamus in American jurisprudence has been motivated in large part by the concern for judicial independence. Cases counseling restraint in the use of prerogative writs repeatedly have observed that such writs have "the unfortunate consequence" of "plac[ing] trial judges in the anomalous position of being litigants without counsel other than uncompensated volunteers." *La Buy v. Howes Leather Co.*, 352 U. S. 249, 258 (1957). See also *Kerr v. United States District Court*, 426 U. S. 394, 402 (1976); *Bankers Life & Casualty Co.*, *supra*, at 384-385; *Ex parte Fahey*, 332 U. S. 258, 259-260 (1947). In response to this concern, the Federal Rules of Appellate Procedure have provided that the respondent judge in a proceeding for mandamus or prohibition may elect not to appear in the proceeding without conceding the issues raised in the petition. Fed. Rule App. Proc. 21(b).¹² Finally, courts consistently have held that concerns for judicial independence require that any award of costs to a prevailing party in an action for mandamus or prohibition be made only against the party at interest and not against the judge. The United States Court of Appeals for the First Circuit explained:

"It would be contrary to the fundamental rules protecting the freedom of judicial action to tax costs against a judge of any one of the constitutional courts of the United States by reason of any failure to apprehend the

¹² Rule 21(b) provides in relevant part:

"If the judge or judges named respondents do not desire to appear in the proceeding, they may so advise the clerk and all parties by letter, but the petition shall not thereby be taken as admitted."

Indeed, the Court of Appeals for the District of Columbia Circuit has not even required that the judge be joined as a party. In *United States v. King*, 157 U. S. App. D. C. 179, 183, 482 F. 2d 768, 772 (1973), the court reasoned: "In the federal courts, when the purpose of mandamus is to secure a ruling on the intrinsic merits of a judicial act, the judge need not—and desirably should not—be named as an active party, but at most only as a nominal party with no real interest in the outcome."